

Merino Industries Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 24 September 2018 · Writ-C No. 23917 of 2018 · **Writ dismissed as not maintainable; relegated to s.127 appeal.**

HEADNOTE

A consumer writ to quash a demand notice, compel a speaking order under the Supply Code, 2005, and have rooftop-solar net-metering applications considered is not maintainable where the petitioner does not dispute the alternative remedy of appeal under s.127. The petition is dismissed on that ground without examining the demand or the solar applications.

FACTUAL SUMMARY

Merino Industries Limited petitioned the Allahabad High Court against Paschimanchal Vidyut Vitran Nigam Ltd. seeking to quash a demand notice dated 24 May 2018, a speaking order under the Electricity Supply Code, 2005, and consideration of its rooftop-solar applications under Regulation 7 of the UPERC (Rooftop Solar PV Grid Interactive Systems Gross/Net Metering) Regulations, 2015 for 120 kW at Unit-1 and 420 W at Unit-2. After adjournments for instructions, a counter-affidavit, and time to rejoin, the petition was heard on 24 September 2018.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

writ-maintainability-alternative-remedy

HOLDING

Where the licensee contends that a writ challenging a demand notice (and seeking a speaking order under the Supply Code, 2005 and consideration of rooftop-solar net-metering applications) is not maintainable because an appeal under s.127 lies, and the consumer does not dispute that alternative remedy, the writ is dismissed on the ground of alternative remedy without deciding the demand or the solar applications. ¶ 4

FLAG Order attributes the s.127 appeal to the Electricity Supply Code, 2005; the statutory appeal is Electricity Act, 2003 s.127.

PRINCIPLE TAGS

relegate-to-statutory-remedy A consumer writ to quash a demand notice, compel a speaking order under the Supply Code, 2005, and have rooftop-solar net-metering applications considered is not maintainable where the petitioner does not dispute the alternative remedy of appeal under s.127.. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 24.5.2018

¶ 4

NOT DECIDED — DUTY TO PASS A SPEAKING ORDER UNDER THE ELECTRICITY SUPPLY CODE, 2005

¶ 4

NOT DECIDED — CONSIDERATION OF ROOFTOP-SOLAR APPLICATIONS UNDER REGULATION 7 OF THE 2015 NET METERING REGULATIONS

¶ 4

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.